

# A framework for assessing governance capacity: An illustration from Vietnam's forestry reforms

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## Abstract

Over the last two decades, governance has become a central area of research in various disciplines of social sciences. Although scholars widely recognize the importance of governance in sustainable development, the quality of governance and how to measure it in a comprehensive way are still under discussion. In response to this, we developed a framework for assessing governance capacity that is based on the policy arrangement approach. The framework highlights three elements—enabling rules of the game, converging discourses, and facilitating resources—and their inter-linkages. To illustrate the use of the framework, we present its application to the policy of forest land allocation in Vietnam. Our findings indicate the complicated link between institutional capacity and governance performance and the effects of socioeconomic contexts on actors' interactions in a policy arrangement.

## Keywords

Governance capacity, institutional capacity, policy arrangement approach, forest land allocation

## Introduction

Over the last two decades, governance has become a catchword in the social sciences (Kjær, 2004; Jordan, 2008). Although scholars still argue over the theoretical conceptualizations of the term (Arts and Visseren-Hamakers, 2012; Ruhanen et al., 2010), it is generally agreed

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that effective governance occurs when societal actors cooperate in order to solve collective problems (Driessen et al., 2012; González and Healey, 2005; Kooiman, 1999; Mayntz, 1998). As governance is widely recognized as one of the crucial preconditions for political, social, and economic development (Cubbin and Stern, 2006; Degnbol-Martinussen, 2002; Goodwin, 1998; Graham and Fortier, 2009; Kaufman and Kraay, 2002), assessing governance has become a growth industry, involving not only social scientists but also practitioners in, for example, international development organizations. Concepts such as governance capacity and institutional capacity are widely used as theoretical tools for these assessments (Gualini, 2005; Healey et al., 2002; Pikner, 2008). However, the issues of what constitutes governance capacity (Gissendanner, 2004; Grindle, 2007; Hall, 2002) and how to assess it in a comprehensive manner (Fuchs and Lorek, 2005) are still under discussion.

This paper puts forward a framework for assessing governance capacity. The framework is inspired by the theoretical perspectives of the policy arrangement approach (PAA) and informed by the literature on governance capacity and institutional capacity. To illustrate the framework's utility, we examine the Vietnamese policy of forest land allocation (FLA), which has evolved under *Doi Moi* (the socioeconomic reforms adopted in 1986). *Doi Moi* comprises the enhancement of democratization and information dissemination, the implementation of a socialist market-oriented economy, and an open-door policy in foreign relations (Beresford, 2008). These macro-transformations have paved the way for a new discourse of forestry socialization, which promotes the involvement of non-state actors in forest management (Dang et al., 2012). The institutionalization of the discourse into the Forest Protection and Development Law in the early 1990s has led to nationwide forest devolution: forest lands have been allocated to households and organizations to use and manage. By presenting this framework and illustrating its application, this paper not only contributes to ongoing debates on governance capacity and its assessments, but also to a better understanding of Vietnam's forest governance reforms.

The paper is organized as follows. We first review current discussions on governance capacity and institutional capacity. We then present our framework for assessing governance capacity and illustrate its application. After presenting our main findings, we discuss the theoretical and practical implications for governance capacity and the FLA policy, evaluate the framework, and suggest issues for future research.

## Governance capacity

Governance capacity has been examined extensively in the literatures on public administration, development, capacity building, and environmental governance. Here, we define governance capacity as the ability of societal actors to work together in order to solve collective problems (Ahrens, 2000; Graham and Fortier, 2009; Knill and Lehmkuhl, 2002; Nelissen, 2002). This capacity is shaped both by the agencies of individual actors and the wider institutional and structural settings influencing the prospects for collaboration. Governance capacity includes the potential of actors' cooperation and the performance in terms of solving collective problems (Arts and Goverde, 2006), both of which are the outcome of actors' interactions (Caffyn and Jobbins, 2003; Pahl-Wostl, 2009), and evolve under and are influenced by wider social contexts (Healey, 2002). Actors' interactions, which refer to their mutually influencing relations, take place at both structural and strategic levels (Kooiman, 1999, 2000). Structural interactions are shaped by institutional settings, which determine the actors' behavior (Hyden et al., 2000; Kjær, 2011; March and Olsen, 1995), their relations (Caffyn and Jobbins, 2003; González and Healey, 2005), and the flow of

resources for collective action (DiGaetano and Klemanski, 1993; Healey, 2006). Strategic interactions, on the other hand, take place when actors' interests, values, norms, ideas, and frames of reference shape their choices in collective action (Caffyn and Jobbins, 2003; Knill and Lehmkuhl, 2002; Kooiman, 1999).

The concept of institutional capacity is widely used in the literature to analyze state capacity and the functioning of institutions. The concept generally refers to the degree to which rules and procedures enable actors to work together in order to solve collective problems (Bhagavan and Virgin, 2004; Cornell, 2002; Savitch, 1998; Solokow, 1979; Wickham et al., 2009; Willems and Baumert, 2003). Institutional capacity also comprises potential and realized capacity (Li and Zusman, 2006) and is also influenced by socioeconomic contexts (Phelps and Tewdwr-Jones, 2000).

Importantly, it is worth highlighting that there are commonalities (i.e. collective problem solving) and differences (capacity of actors and functioning of institutions, respectively) between the concept of governance capacity and that of institutional capacity. The terms share two theoretical puzzles. First, authors still debate the link between potential and realized capacity. For example, while Sokolow (1979) says that the two capacities may not be related, Li and Zusman (2006) argue that potential capacity would have a positive effect on realized capacity. Second, although many authors agree that governance capacity and institutional capacity are context-dependent (González and Healey, 2005; Grindle, 2007; Healey et al., 2002; Phelps and Tewdwr-Jones, 2000), it is still an open question how socioeconomic factors influence actors' interactions (González and Healey, 2005).

However, the two terms differ in focus. Institutional capacity emphasizes the institutional settings under which actors interact (Willems and Baumert, 2003), with potential institutional capacity centering on institutional opportunities and constraints for collective action and realized institutional capacity highlighting regulatory enforcement (Li and Zusman, 2006). Governance capacity, on the other hand, has a broader focus (Wickham et al., 2009). Without disqualifying the important role of rules of the game in collective action, governance capacity goes beyond institutions and decision-making structures, to also emphasize actors' discourses and resources. We therefore prefer to use the broader concept of governance capacity to denote the "quality" of governance. As institutional capacity, in our opinion, can be considered as an essential part of the broader concept of governance capacity, this paper is informed by the literature on both concepts.

Despite this rich literature on governance capacity, a coherent framework for assessing governance capacity is still lacking, and scientists employ various evaluative approaches (Kersbergen and Waarden, 2004). For example, authors discuss the appropriateness of goal-based versus goal-free assessments for governance capacity. In the former, authors assess social interventions (Rossi et al., 2004) against their defined goals (Verschuren and Zsolnai, 1998). In the latter, they facilitate the interaction of stakeholders to examine the different concerns and issues (Guba and Lincoln, 1989). Some authors adopt an in-between approach. Arts and Goverde (2006), for example, focus on both the policy goals and the views of affected actors. This approach appears to be more appropriate for governance assessments. As governance capacity denotes the ability of societal actors to work together in collective action, it seems fair to include their concerns in governance assessments. Moreover, since the aim of social cooperation is to solve collective problems, its assessment should clarify the extent to which these goals are realized.

To contribute to these discussions, we designed a framework for assessing governance capacity. Our main research questions were: what constitutes governance capacity and how

can it be assessed in a comprehensive manner? When developing the framework, we had two major considerations:

- In order to build upon the general consensus in the governance capacity literature, the framework should pay attention to both governance processes and impacts and support the investigation of institutional settings.
- In order to contribute to on-going discussions on the remaining theoretical puzzles, the framework should facilitate the examination of both structural and strategic interactions, the link between potential and realized capacity, and the interplay between governance capacity and socioeconomic contexts.

## **A framework for assessing governance capacity**

The development of the framework was inspired by the theoretical perspectives of the PAA, which is highly relevant to governance capacity assessment for four reasons. First, although the approach was developed to analyze environmental policy changes (Arts et al., 2006; Wiering and Arts, 2006), it has been increasingly used in governance assessments (Arnouts and Arts, 2009; Arts and Goverde, 2006; Van der Zouwen, 2006; Van Gossum et al., 2010). In doing so, the PAA conceptualizes policy as “the *what*” (actors’ perspectives, definitions of problems, goals, and solutions) and governance as “the *how*” (collective action, problem solving), with the two representing the “two sides of the same coin” named policy making. Second, by taking into account the effects of larger socio-economic contexts on social cooperation, the approach facilitates a better understanding of the context-dependency of governance capacity. Third, the PAA helps to incorporate discursive aspects, to which the governance capacity literature pays relatively little attention, as discourses are included in its four dimensions (discourse, actors, rules of the game, and resources). And fourth, since the approach pays attention to both potential and realized capacity, it supports the investigation of potential links between them and their influence on governance processes and impacts.

### ***The policy arrangement approach***

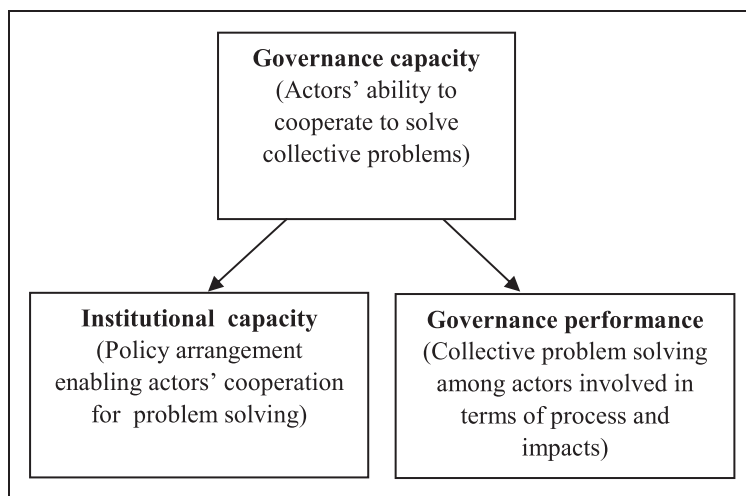
The PAA is a mid-range theory (Arts and van Tatenhove, 2004; Van Tatenhove and Leroy, 2000) that builds on neo-institutionalism (March and Olsen, 1989), network theory (Marsh and Rhodes, 1992), the advocacy coalition framework (Sabatier, 1987, 1988), and discourse analysis (Hajer, 1995). The approach centers on three connected theoretical concepts: policy arrangements, institutionalization, and political modernization. A policy arrangement denotes “the temporary stabilization of content and organization of a policy domain” (Arts et al., 2006: 96). Institutionalization refers to the continual shaping and structuring of the content and organization of a policy arrangement. This process takes place under the on-going process of political modernization, which relates to the shifting relations between the state, market, and civil society under economic, social, and cultural developments (Arts et al., 2006). A policy arrangement consists of four dimensions:

- Actors—actors and their coalitions in a policy domain.
- Discourses—the perspectives of the actors involved, considering their norms and values, definitions of problems, goals, and approaches to solutions.
- Rules of the game—both formal and informal rules for policy and decision making, such as legislation and procedures.

- Resources—the division of power and influence among actors through their mobilization, division, and deployment of resources.

An examination of a policy arrangement can start at any PAA dimension (Lieberink, 2006), with different departures facilitating different analytical foci. For example, analyses focusing on the positions and roles of actors may start at the actor dimension, while studies focusing on the influence of institutional changes could begin with rules of the game. Subsequently, the other three dimensions are further conceptualized and operationalized from the perspective of the first entry point. This move brings back the number of dimensions from four to three, simplifying and at the same time focusing the analysis. This is not to say that one dimension is lost; on the contrary, the other ones are considered from the perspective of the dimension that is the starting point of the analysis.

The governance capacity of a specific policy arrangement is shaped by the level of interconnectedness of its four dimensions (Arts and Goverde, 2006). Arts and Goverde (2006) differentiate between potential and realized governance capacity through the following concepts. First, indicative governance capacity refers to the potential contribution of a policy arrangement to manage or solve societal and administrative problems. This means that an arrangement is organized and structured in such a way that it enables societal actors to work together in order to solve collective problems. As this capacity is largely shaped by the institutional settings under which actors have to operate, “indicative governance capacity” shares meaning with “potential institutional capacity.” Second, performative governance capacity concerns the actual performance of a policy arrangement in achieving collective goals. If such capacity exists, the arrangement indeed facilitates cooperation and problem solving among societal actors. From the perspective of the PAA, such performance includes, but also goes beyond, regulatory enforcement to embrace both governance processes and impacts (e.g. social learning as well as goal achievement; see the operationalization below). Performative governance capacity therefore has a broader meaning than “realized institutional capacity.”



**Figure 1.** Conceptualization of “governance capacity.”

**Table 1.** The governance capacity framework.

|                     | Elements                   | Criteria                               |                                      |
|---------------------|----------------------------|----------------------------------------|--------------------------------------|
|                     |                            | Institutional capacity                 | Governance performance               |
| Governance capacity | Enabling rules of the game | Codification of decision-making rights | Practising rights                    |
|                     | Converging discourses      | Venues<br>Open attitudes               | Social learning                      |
|                     | Facilitating resources     | Resource availability                  | Effectiveness and cost effectiveness |

As the terms of indicative capacity and performative capacity are not widely used in the scholarly literature, we decided to adopt other ones. We use “institutional capacity” to refer to potential capacity and “governance performance” to realized capacity (Figure 1). In doing so, we better facilitate discussion on the contribution of the framework to the relevant literature than the original concepts of Arts and Goverde (2006).

### *The governance capacity framework*

Our governance capacity framework (Table 1) departs from the actor dimension of the PAA, from which the other three dimensions (discourses, rules, resources) are conceptualized and operationalized, thus bringing back the four PAA dimensions to what we will now call three governance capacity *elements* (to prevent confusion with the term “dimension” in the PAA). We take actors as the entry point for our analysis and assessment, because capacity is vested in actors (Bebbington et al., 2006), and governance capacity is about actors’ cooperation. It is actors who initiate and carry out the shift in governing: they frame collective problems and carry out strategies for problem solving, and they are affected by these actions.

The framework consists of three operational steps. The first distinguishes three elements of governance capacity:

- Enabling rules of the game for actor involvement;
- Converging discourses of various actor coalitions;
- Facilitating resources for actor commitment.

In the second step, these elements are operationalized into criteria in order to be able to assess governance capacity in more detail. An important element of governance capacity is the rules of the game, since to govern means to make rules for a set of actors who act in relation to others (Carlsson and Sandström, 2008). Concerted effort by actors to pursue their common goals is unlikely to occur if there are no rules regulating who can be involved, their roles, and how they should interact. As rules provide the structure under which social cooperation takes place, they could constrain or enable social cooperation (Thye, 2000). Although enabling rules of the game may vary from case to case, a generally important aspect of this element is to provide actors, particularly those who used to be marginalized, with the rights to get involved in decision making in multi-actor governance processes. Joint decision making makes decisions more responsive to affected actors and thereby helps gain their support for problem-solving strategies (Carcasson and Sprain, 2010). To assess enabling rules of the game in terms of institutional capacity, we examined the codification of decision-making rights, defined as the extent to which actors obtain the legal rights to be



involved in decision making. As there may be gaps between this codification and its realization, the practicing of rights is used as criterion to assess governance performance.

We examined discourses, which mediate not only the thinking and speaking of actors but also their actions (Arnouts and Arts, 2009), as the second element of governance capacity. Actors' perspectives on the problems at stake could determine not only their willingness to become involved but also their proposed objectives and solutions. Converging discourses support cooperation through the objectives and strategies that the involved actors jointly consider appropriate (Hajer and Versteeg, 2005). However, actors involved in collective action often have different interests and values (Ahrens, 2000; Frischtak, 1994: vii), and converging discourses will be impossible if actors are unable to reconcile their goals and preferred solutions. For such reconciliation to take place, actors need spaces and processes for discussion (Carcasson and Sprain, 2010). We therefore used the concepts of venues and open attitudes of involved actors toward each other's positions to assess the institutional capacity and social learning to evaluate its governance performance. Venues are defined as places and practices that offer the possibility for actors to discuss and arrive at their common goals (Williamson and Fung, 2005). Given available venues, actors still might not reconcile if they do not value and respect each other's ideas and interests (Bloomfield et al., 2010). Having open attitudes toward other positions means being open to the logic of others' views and being willing to adjust one's goals and strategies (Carcasson and Sprain, 2010). By offering participants new information and perspectives and facilitating the exchange of ideas, venues and open attitudes foster social learning (Dana and Nelsons, 2012). Social learning is understood as "a deliberate attempt to adjust the goals or techniques of policy in the light of past experience and new information so as to better attain the ultimate objectives of governance" (Hall, 1993: 278). These adjustments enable actors to accommodate differences and negotiate their interests in governance processes (White et al., 2005).

Finally, we dealt with resource mobilization for social cooperation as the third element of governance capacity, because actors need resources to carry out activities for problem solving, and social cooperation is often driven by resource constraints (Börzel, 1998). Actors cooperate because they depend on each other's resources to achieve common goals (Börzel, 1998) and can make effective use of their own resources only if they are able to access the relevant resources of other actors. For example, in many developing countries, the state controls forest resources, but lacks the labor and funding to protect and manage those resources effectively. On the other hand, as local people often lack access to forest resources, they cannot make use of their labor and traditional knowledge for forest protection and management. To examine the extent to which actors in societal cooperation access the relevant resources needed for their collective action, we used resource availability to assess institutional capacity and effectiveness and cost-effectiveness to evaluate governance performance. Resource availability is obviously an essential condition for effectiveness (Bäckstrand, 2006), because it enhances the likelihood that social cooperation will achieve its goals. Due to commonly experienced resource constraints, actors also struggle to reduce the cost of problem-solving efforts. For that reason, cost-effectiveness, which denotes "the total cost per favorable outcome" (Davies et al., 1998: 196), is also used to assess governance performance.

As a third and final operational step, the framework explicitly takes into consideration the inter-linkages among the various elements of governance capacity and between the policy arrangement and the wider socioeconomic context.

### **An illustration from Vietnam's forestry reforms**

We selected the case of FLA in Tay Ninh province, South Vietnam, to illustrate the application of the framework. The case is relevant because it conveys a shift in forest

governance from the domination of forest state enterprises to shared responsibilities between forestry agencies and local participants. In addition, since the policy has been pursued for over 20 years, the case provides detailed observations of the policy's processes and impacts.

Tay Ninh is located around 100 km northwest of Ho Chi Minh City (formerly Saigon). When the country was unified after the civil war in 1975, 36% of the Tay Ninh area (145,000 ha) was natural forest. Wood exploitation and forest conversion reduced the province's forest cover to only 10% (40,400 ha) in the late 1980s. To address the problem, the province in 1990 adopted the policy of FLA in order to mobilize resources for forest rehabilitation and to contribute to the livelihoods of local people, whose income is mainly derived from cash crop production.

The policy's implementation was decentralized from the Ministry of Agriculture and Rural Development (MARD) to the Provincial People's Committee (PPC), which supervises the policy through its Department of Agriculture and Rural Development (DARD). The PPC and DARD thus have a strong influence on the policy and are powerful players in the process. District and communal authorities are also involved in decision making. The province dismantled state forest enterprises and established forest management boards (FMBs), which contracted their forest lands to 1984 households for forest plantations and to 37 groups of households for the protection of natural forests (SFIPI, 2005). FMBs managed forests with the help of forest rangers, supervised by DARD, who were responsible for sanctioning forest violations (GoV, 2006). The province divided its forest lands (69,626 ha) into three categories:

- Special-use forests for the conservation of biodiversity and cultural values;
- Protection forests for environmental protection;
- Production forests for the production of wood and forest products.

### *Application of the governance capacity framework*

Considering the context of the policy, we applied the governance capacity framework in the following manner. For the codification of rights, we focused on property rights because they determine the extent to which recipients can be involved in decision making. Property rights are defined as rights to own and possess something (Ewert et al., 2004) and are referred to as "bundle of rights" (Schlager and Ostrom, 1992), which comprise access (to enter the resource), withdrawal (to extract something from the resource), management (to modify the resource), exclusion (to determine who can use the resource), and alienation rights (to transfer rights to others). Venues denoted meetings at the provincial and local levels (districts, communes, and villages) where villagers exchanged information and discussed FLA with forestry agencies (FMBs, DARDs, forest rangers). Open attitudes related to the fact that the different actors at the provincial and local level were open toward each other's concerns and interests. We specified resource availability in terms of funding, forests, and information, which are essential for forest rehabilitation. Practicing rights referred to the extent to which recipients used their property rights; and social learning concerned changes in the views of state actors and villagers in terms of goals and solutions for forest rehabilitation. As cost-effectiveness is not a priority of the policy, we focused on effectiveness instead and specified it by forest condition and the local income derived from the forest lands.

We conducted fieldwork from December 2010 to April 2011 and collected our data through literature review, document analysis, semi-structured interviews, and



questionnaires. We selected 59 key informants for the interviews (Purdon et al., 2001) by snowball and saturation sampling (Frank and Snijders, 1994) from the forestry and land management sectors, local authorities, local NGOs, forestry contractors, and villagers. We carried out a survey through questionnaires in three districts, which, between them, represent the allocation of the three forest categories: Tan Bien has special-use forests, Tan Chau has protection forests, and Chau Thanh has production forests. We chose 98 respondents for the survey by stratified random-sampling (Nichols, 1991) from lists of forestry contractors. We triangulated data from different sources before processing. We carried out qualitative data analysis using the method developed by Miles and Huberman (Punch, 2005), with data reduction, data display, drawing, and verifying conclusions. We used basic statistical analysis (frequencies from cross tabulation) by SPSS IPM Statistic 20 to analyze data from the questionnaires.

### *FLA institutional capacity*

This section analyzes the codification of decision-making rights, venues and open attitudes, and resource availability for forest rehabilitation. The analysis highlights how these criteria together shape FLA institutional capacity.

*Codification of decision-making rights.* There are two instruments of FLA: land-use certificates (LUCs) and forestry contracts. Only recipients of LUCs are forest owners because LUCs grant ownership of the forest lands allocated. The use of these instruments is regulated by Decision No 08/2001/QĐ-Ttđ (hereby called Decision 08) on the management schemes of the three forest categories (GoV, 2001) and the 2004 Law on Forest Protection and Development (NAV, 2005). According to these regulations, only FMBs can become forest owners of special-use and protection forests, while other actors (organizations, households, and individuals) can be owners of production forests. All forest owners can have contracts with other actors who implement forest rehabilitation activities.

Decision 08 grants FLA recipients of the three forest categories different bundles of rights (Table 2). All recipients have access and exclusion rights, but different withdrawal, management, and alienation rights. Overall, owners of production forest plantations obtain a rather complete bundle of rights. Owners of natural production forests, however, have restricted management rights and can only harvest 10% of the wood growth volume generated by their forest management activities. For special-use and protection forests, the

**Table 2.** FLA bundles of rights.

| Forest category            | Recipients   | Forest type | Property rights |            |              |           |            |
|----------------------------|--------------|-------------|-----------------|------------|--------------|-----------|------------|
|                            |              |             | Access          | Withdrawal | Management   | Exclusion | Alienation |
| Special-use and protection | FMBs         | FP          | Yes             | Limited    | Limited      | Yes       | No         |
|                            |              | NF          | Yes             | No         | Very limited | Yes       | No         |
|                            | Contractors  | FP          | Yes             | Limited    | No           | Yes       | No         |
|                            |              | NF          | Yes             | No         | No           | Yes       | No         |
| Production                 | Other actors | FP          | Yes             | Yes        | Limited      | Yes       | Yes        |
|                            |              | NF          | Yes             | Limited    | Limited      | Yes       | No         |

FP: forest plantations; NF: natural forests.

owners' proposals for management have to be approved by DARD, the PPC, and MARD, even though the owners have LUCs.

To increase forest cover, Tay Ninh province designated 85% of its forest lands as special-use and protection forests. Both these forests and the small area of production forests (9508 ha) were allocated to FMBs. As a result, villagers only played a role as their forestry contractors. At the beginning of FLA (1993–1997), villagers received forestry contracts for 1-year term. They received payments for their forest management activities and were allowed to harvest 70% of the auxiliary trees, which were planted to provide the main trees with shade. Since 1997, villagers obtain long-term contracts (up to 50 years), which allow them to harvest all the auxiliary trees and intercrop agricultural crops on the forest lands. However, contractors for natural forests still only receive annual contracts and have no withdrawal rights.

In short, the extent to which FLA actors obtained the legal rights to become involved in decision making was shaped by two instruments, LUCs and forestry contracts, with the former offering recipients more rights over the forest lands than the latter. The use of these instruments was regulated differently among the three forest categories. As only recipients of production forest plantations acquired a rather complete bundle of rights, the provincial government used forest designation to shape the—often limited—property rights granted to villagers involved in the policy.

*Venues and open attitudes.* FLA planning involved a fairly open process. FLA master plans, formulated by DARD, were open to feedback from local authorities and relevant sectors, such as the Department of Land Management. However, this process, although open, mainly involved information exchange instead of deliberation. FMBs' discussions with villagers on the policy were also limited, since exchanges merely involved FMBs informing villagers of the approved plans at local meetings in communes and villages. Overall, 61% of questionnaire respondents were informed about FLA just before they signed the contracts, and 80% did not attend any meetings during the term of their contracts. Moreover, 48% of respondents proposed some changes in forest plantations; for example, they requested to reduce the tree density in forest plantations and increase the annual harvest area, which was only 25%. However, only 18% of them received feedback from FMBs. As a result, 71% of survey respondents were not satisfied with the manner in which local meetings were organized.

FLA actors had different views on the policy's goals. While DARD and FMBs emphasized the rehabilitation of protection and special-use forests with the use of native species, forestry contractors advocated production forests and the use of rubber trees in order to enhance local livelihoods. Nevertheless, from the late 1990s, DARD and FMBs expressed a rather open attitude: they acknowledged the concerns of villagers on their rights and benefits in forest rehabilitation. By contrast, villagers still stuck to their views and remained hesitant to support forest rehabilitation, because the profits they received from forest plantations were much lower than those from cash crops. Consequently, although 82% of respondents recognized the importance of forests, only 7% got involved to protect forests and 75% only passively participated in the policy, because they were cultivating cash crops on forest lands and they would like to continue intercropping there.

*Availability of resources: Forests, funding, and information.* Under the forestry contracts scheme, DARD and FMBs controlled the forest lands, funding, and information. Forestry contractors received small plots, averaging 5 ha/household. However, villagers encroached on forest land in order to access more land for cash crop production.

To avoid conflicts, FMBs contracted the occupied lands to the encroachers. As a result, villagers who had not illegally occupied forest lands could not obtain forestry contracts with FMBs.

In terms of funding, FMBs invested only 50–60% of the actual cost of forest plantations, and forestry contractors had to contribute the rest. In order to reduce their costs, the latter therefore did not carry out the required activities. For natural forests, contractors received 100,000 VND (about US \$5) per ha per year for patrolling the forest and reporting to FMBs incidents of encroachment, illegal logging, and poaching. This low payment discouraged contractors from actively patrolling. All key informants in the interviews and 21% of survey respondents acknowledged the insufficient funding (from both FMBs and contractors) for forest plantations.

The flow of information between FMBs and forestry contractors was limited. FMBs met contractors only two or three times a year to inform them of the activities required for forest planting. At the end of the year, they checked the survival rates of trees to determine the payments. As a result, 51% of survey respondents did not understand FLA regulations and procedures, 22% did not know who were forest owners, and only 13.5% received information from FMBs on the importance of forests. They also lacked instructions on silvicultural techniques and information on the prices of forest products.

Summarizing, although forestry contractors obtained access to some forest lands and were able to harvest the auxiliary trees, their management rights were restricted. Local meetings did not offer them the opportunities to become involved in defining the collective goals. As a result, forestry contractors, who became involved to obtain land for cash crops, invested insufficiently (in terms of finance and labor) in forest rehabilitation. Together, these constraints had significant impacts on the governance performance, as presented below.

### *FLA governance performance*

This section evaluates the practicing of rights, social learning, and effectiveness. The evaluation reveals the interplay of these criteria in FLA governance performance.

*The practising of rights.* Many forestry contractors practiced their access and withdrawal rights: 69% intercropped on the forest lands, 31% harvested wood, and 9% collected non-timber forest products (NTFPs). However, contractors remained frustrated with their restricted management rights. For example, as they were allowed to cut only 25% of the matured auxiliary trees per year, it took them 4 years to finalize the harvest. Also, although they preferred to plant rubber, which would bring them more income, they had to plant the tree species selected by FMBs.

Even though FMBs and forestry contractors were granted the exclusion right, it appears that this right was enforced rather weakly. Due to inadequate regulations for sanctioning violators and contractors' infrequent patrolling, forest encroachment and illegal logging, although reduced, still occurred in both natural forests and forest plantations. Also, although forest rangers and local authorities' land management officers shared the responsibility for sanctioning forest encroachment, they did not coordinate their activities well enough to help FMBs deter and exclude encroachers. These problems were subsequently exacerbated, especially from the mid-2000, when prices for agricultural crops, including cassava, sugar cane, and rubber, increased dramatically. Moreover, national and provincial policies supporting the development and expansion of agriculture contributed further to their worsening.

*Social learning: Adjustment of goals and solutions.* Semi-structured interviews showed that during the early 1990s, villagers were not interested in forest rehabilitation. The long-term contracts, which offered contractors the rights to use the auxiliary trees and to intercrop in the forest lands, did motivate villagers to become involved, but they still focused on cash crops instead of forest trees. State actors seemed to take more lessons on board than villagers. The low-resource mobilization for forest rehabilitation compelled DARD and FMBs, who had focused on the goal of improving forest conditions, to make four adjustments to enhance the practicing of rights by forestry contractors.

First, since 1993, FMBs have applied new models of forest plantations, which have low density of trees and combine both slow-growing native species and fast-growing exotic species. These models allow contractors to harvest the fast-growing trees and to have space for their agricultural intercropping. Second, in 2006, the province increased the area of production forests (which provide contractors more elaborate management rights and are more profitable for them than protection or special-use forests) from 2783 to 9508 ha. Third, in 2008, DARDs and FMBs increased the annual harvest area of plantations from 25 to 50%, so that forestry contractors can increase their harvest and replant the lands. Fourth, although rubber was only allowed in production forests, former encroachers on lands for protection forests who became forestry contractors are now allowed to keep 50% of their rubber.

These adjustments, however, had both positive and negative impacts. Although these responses eased tensions between FMBs and forestry contractors, the new rules on the use of rubber trees induced tactical behavior by the contractors. After harvesting the auxiliary trees, many contractors planted rubber trees in harvested areas, even though this was not allowed. Some even uprooted the young auxiliary trees in order to plant rubber trees and argued that it was legal because FMBs allowed others to use rubber trees.

*Effectiveness: Condition of the forests and local incomes.* The FLA policy aimed to improve forest condition and local incomes. While the forestry sector emphasized improvements in terms of forested area and forest quality, villagers were more interested in their income from agricultural intercropping.

Thanks to the mobilization of funding and labor from forestry contractors, the area of forest plantations in the province has, over the last decade, increased from 5672 to 12,583 ha (an increase of over 120%); the area of natural forests has stabilized at 35,516 ha (MARD, 2011). This can be considered a success, since in the same period, forest loss continued in other areas in the country. Nevertheless, both the key informants and survey respondents expressed great concerns about the quality of forests (wood stock, species composition, NTFPs, and wildlife), because forest plantations made up 87% of the increase of forest area in the province. Moreover, some areas of natural forest were further degraded as a result of illegal logging, poaching, and forest encroachment. As contractors of forest plantations did not fulfill their tasks in planting and managing their plantations, the productivity of forest plantations was poor. Furthermore, as these plantations were composed of only one native species (selected from a list of four to five native species) and one fast-growing exotic species, they failed to ensure species diversity.

The impact of FLA on local people's income was also mixed. Income from the allocated forest lands contributed 46% to the total household's income of forestry contractors, of which 36% came from intercropping and 10% came from forests. Contractors blamed their low income from forests on the poor productivity of forest plantations, caused by poor seedlings and silvicultural techniques. DARD and FMBs, however, put the blame on contractors' insufficient investments in their plantations.

In sum, the mixed goal achievement of the policy was determined by the inter-linkages between the limited practicing of rights and the tactical behavior of some forestry contractors as a response to some changes in the policy induced by social learning among governmental actors. The socioeconomic contexts, characterized by agricultural development and high profits on cash crops, also had a strong influence on FLA impacts.

## **Synthesis and discussion**

The FLA case provides insights for the discussion on what constitutes governance capacity and how to assess it in a comprehensive manner. It suggests that governance capacity is determined by the interplay of enabling rules of the game, converging discourses, and facilitating resources. The extent to which rules enable actors to participate in decision making affects how views on the collective goals can converge among the various actors, shaping their commitment to make resources available. Also, adjustments of actors' goals have a bearing on how they practice their rights and mobilize available resources for cooperation. While the first pattern (rules-goals-resources) shapes the institutional capacity of FLA, the second (learning-practicing-mobilization) does so regarding governance performance.

Although the case supports the argument that rules of the game can enable or constrain actors' actions (Hyden et al., 2000; Kjær, 2011; March and Olsen, 1995), it also demonstrates how actors' views on the collective goals interfere with this influence. For example, since the codification of rights in forestry contracts was still limited (in terms of contractors' decision-making rights, opportunities to co-define the policy's goals in local meetings and access to funding and information), it contributed to the divergence of goals among the actors involved, paving the way for opportunistic behavior. While the provincial government designated most forest lands as protection and special-use forests in order to increase forest cover, contractors of these forests became involved mainly to obtain land for cash crops. Rules of the game (forest designation, access rights) thus provided actors opportunities to tactically influence resource availability (forest lands), shaping the potential of their cooperation.

The influence of social learning on how contractors practice their rights, and as such on policy effectiveness, characterizes FLA governance performance. For example, the new models of forest plantations, which allow for agricultural intercropping and provide contractors with improved withdrawal rights, had unexpected impacts on the condition of the forest, because contractors used their rights to gain profits from cash crops and neglected their obligations in forest planting. The fact that contractors received a higher income at the cost of forest quality illustrates how social learning might unexpectedly facilitate actors to take advantage of rights to mobilize available resources for their own interests, thereby negatively affecting cooperative performance.

The case also sheds light on the possible influence of the wider socioeconomic contexts on actors' cooperation. It shows that these impacts are exerted through discourses, which influence resource mobilization. Agriculture policies and high profits from cash crops deepened actors' divergent goals (forest rehabilitation versus cash crop intercropping) in the policy, shaping villagers' passive involvement and discouraging them from investing in forest rehabilitation.

The evidence from the case corresponds with the general assumption that high-institutional capacity facilitates governance performance, and low-institutional capacity is often the basis for low-governance performance (Bhagavan and Virgin, 2004; Colfer and Capistrano, 2005; Evans and Harding, 1997; Fucchs and Lorek, 2005; Gibbs et al., 2001; Li



and Zusman, 2006; Wichkham et al., 2009). For example, FMBs' open attitudes facilitated their social learning, which was reflected in the new models of forest plantations. However, this relationship is sometimes less straightforward. The fact that contractors insufficiently practiced their exclusion rights is a good example of institutional capacity not always fully materializing into governance performance. Furthermore, a high score for an element of institutional capacity could also constrain governance performance. For example, the improved access and withdrawal rights of forestry contractors not only encouraged villagers' involvement but also triggered their opportunistic behavior.

The above discussion provides three implications for governance capacity assessment. First, the inter-linkages among the practicing of rights, social learning, and effectiveness in the case show that the sole use of goal-based or goal-free evaluations will provide only a partial view of the complicated picture of governance performance. This implies that governance assessments need to incorporate both goal-based and goal-free approaches. Second, a high-governance performance may not be a simple sum of the various scores on the different criteria. On the contrary, these often pose trade-offs. Governance assessment, therefore, should go beyond the scoring of each criterion to investigate the interplay of the three elements of governance capacity and the link between institutional capacity and governance performance. In addition, due to the evolution of and changes in governance capacity over time, regular assessments and policy revisions are vital to sustain and enhance governance performance in the longer term. Third, the large influence of contextual factors on the institutional capacity and governance performance in the case casts doubt on the use of large-N samples across countries, as is often done by international development agencies in governance capacity assessments. More importantly, the influence of the wider socioeconomic contexts on actors' cooperation suggests that governance capacity assessments in the field of natural resource management should pay greater attention to the influence of macro policy making, because it may facilitate the development of one policy field (in the FLA case agriculture) at the cost of other (in the FLA case forestry).

### *Implications for Vietnam's forestry reforms*

The involvement of local people in FLA undoubtedly indicates changing forest governance under Vietnam's forestry reforms. The key issue of this change seems not whether but why and how local people participate in the policy. While some authors (Castella et al., 2006; Nguyen et al., 2008; Thang et al., 2010; Thanh and Sikor, 2006) blame the low level of local participation on the limited property rights granted to FLA recipients, trade-offs between the two FLA goals (forest rehabilitation and income generation) and their impacts on forest condition allow us to argue that diverging goals are also an important challenge for local involvement. Actors' tactical behavior in practicing their property rights are likely to occur if they do not share the goals for cooperation. This challenge underlines the importance of venues for deliberation and suggests that the sole emphasis of state actors on improving recipients' property rights is not sufficient to facilitate local involvement. Local meetings thus should facilitate villagers to participate in the definition of the FLA goals and provide them with information on both FLA and silvicultural techniques, which help improve forests' productivity and enhance income. Mechanisms to strengthen collaboration between the agriculture and the forestry sector in policymaking are also important to better manage trade-offs between the development of cash crops and forest rehabilitation.



### ***Strengths and shortcomings of the framework and its applicability***

The case reveals three strengths of the framework. First, by including both organizational and substantive aspects of collective action, the framework supports a systematic identification of governance issues and the examination of actors' structural and strategic interactions in governance processes. Second, its attention to the wider socioeconomic contexts offers a better understanding of main factors influencing governance capacity. Third, the examination of both institutional capacity and governance performance facilitates a deeper understanding of the different determinants and aspects of governance capacity, making it a comprehensive tool for governance assessments. Nevertheless, the framework is demanding, especially regarding the large amount of information required for the overall assessment of three elements and the in-depth analysis of the various criteria. On the other hand, although comprehensive and demanding, the framework also inevitably ignores crucial factors for cooperation and collective action. A good example might be "trust" that is superficially touched upon—through social learning, e.g.—but not thoroughly addressed and assessed in-depth.

The framework contributes to the elaboration of the PAA from an analytical tool for environmental policy change (Leroy and Arts, 2006; Wiering and Arts, 2006; Wiering and Immink, 2006) and governance processes (Arnouts and Arts, 2009; Van Gossum et al., 2010), into an evaluative tool for governance capacity assessment. The fact that we focused on Vietnam and forestry policies does not limit the framework to this country or sector. On the contrary, we claim its generalizability for the following reasons. As the elements "enabling rules of the game," "converging discourses," and "facilitating resources" reflect key elements of governance capacity in the literature and encompass both governance process and impacts, the framework is applicable in different types of assessments. The general character of its criteria creates space for further specification in different situations. In particular, the framework is applicable for assessing other policies, either in Vietnam or in any other country that is shifting from strong state governance to a more participatory system. It is not forests, but new modes of governance that are key to the framework.

Finally, the case also highlights how the combination of qualitative and quantitative data might benefit governance assessments based on the framework. Although our conclusions mainly draw from qualitative analysis, basic statistics (frequencies from cross tabulation) and their display by tables, charts, and diagrams were especially helpful for outlining the relationships between different criteria and for strengthening arguments through triangulation.

### **Conclusions**

This paper has presented a framework to analyze governance capacity and has illustrated the application of the framework using the case of FLA in Vietnam. The paper has argued that enabling rules of the game, converging discourses and facilitating resources are essential elements of governance capacity because their interplay shapes both institutional capacity and governance performance. This interplay reveals a challenge for Vietnam's forestry reforms: diverging goals and strategies of the actors involved. This challenge thus calls for social learning on the co-definition of collective goals.

The following three questions remain for future research on governance capacity. First, although the case indicates the links between institutional capacity and governance

performance, the question remains how this link might express itself in other policy fields or countries. Second, actors' strategic interactions in the case take place under divergent discourses and constraining rules of the game. These unfavorable contexts reflect only a partial picture of the complicated governance situation. It would be interesting to study the strategic behavior of actors in other, more favorable conditions, which may be characterized by enabling rules of the game and more convergence among actors' discourses. Third, although our illustration already shows how the wider socioeconomic context affects forest governance capacity (the expansion of cash crops at the cost of forest rehabilitation), more studies are necessary to provide for a better understanding of whether, and, if so, under what conditions, this wider context supports or constrains governance capacity in specific sectors, like forestry.

## Highlights

- The paper introduces a framework for assessing governance capacity that is based on the PAA
- The framework highlights three elements—enabling rules of the game, converging discourses, and facilitating resources—and their inter-linkages.
- The illustration case of FLA in Vietnam indicates the high relevance of these three elements in governance capacity assessments.
- The case shows the complicated link between the potential and realized governance capacity and the effects of socioeconomic contexts on actors' interactions in a policy arrangement.

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